DORMAN LONG ENGINEERING LIMITED

PURCHASE ORDER

Doc. No. Exhibit 3-3 Rev. 3 dated 9.01.2024

Order No : DLE/PO/12323/VIOBAY
Sage Ref No : DLENG2507POH00000020
Date : 18-July-2025

12/14 Agege Motor Road, Idi-Oro Mushin, Lagos-Nigeria

E-mail: procd@dormanlongeng.com

SUPPLIERS NAME:	**VIOBAY INVESTMENT NIG. LTD**	
ADDRESS:	D487 Alaba International Market, Ojo, Lagos	
REQUISITION NO:		
PURCHASING ORDER ACCEPTANCE EXPIRATION DATE	**1 week on reciept of P.O**	**PROJECT:** **DL0002** **PRODUCTION STOCK CONSUMABLES**
DELIVERY ADDRESS:	12/14 Agege Motor Road, Idi-Oro Mushin, Lagos-Nigeria	
DELIVERY PERIOD:	Within one week on receipt of PO	
YOUR REFERENCE NO:	**As Per Your Quotation**	

SCOPE: **Supply of Consumables for DLE, Idi-Oro**

S/N	Item Description	UOM	QTY	UNIT PRICE	DISC%	DISC AMT	TOTAL PRICE
1	4 1/2" power brush c/s	PCS	50.0000	₦ 2,800.00	0.00	₦ 0.00	₦ 140,000.00
2	STEEL / METAL MARKER - PEN TYP	PCS	36.0000	₦ 2,500.00	0.00	₦ 0.00	₦ 90,000.00
3	16amps 2pin socket and plug	PCS	50.0000	₦ 3,500.00	0.00	₦ 0.00	₦ 175,000.00
4	EXTENSION CABLES 2.5 x 3core	M	500.0000	₦ 2,750.00	0.00	₦ 0.00	₦ 1,375,000.00

PAYMENT TERMS: 100% Advance

NOTE: ATTACHED DELIVERY TERMS AND CONDITIONS APPLY

VALIDITY PERIOD: 12 MONTHS

Please note the following:

All Invoices and supporting documents should be forwaded to dleinvoices@dormanlongeng.com

- All relevant taxes will be deducted where applicable
  VAT numbers should be included on invoices for VAT payment to be paid to you.
- Purchase order number should be included on your invoice for traceability.
- TIN should be included on your invoice.
- Purchase order number should be included on your invoice for traceability.

Total (Excl):	₦	**1,780,000.00**
VAT:	₦	**133,500.00**
1% NCD:	₦	**0**
5% WHT:	₦	**0**
Discount	₦	**0.00**
Total (Incl):	₦	**1,913,500.00**
	₦	**1,913,500.00**

APPROVED BY:

Chinedu Chinedu (Jul 25, 2025 14:50:51 GMT+1)

ORDER ACCEPTED BY:

Dorman Long Engineering Limited

GENERAL TERMS AND CONDITIONS

GOODS: The Goods, (defined to include all supply services, materials, and related items) shall be supplied strictly in accordance with both the specification and any other special requirements stipulated in the Purchase Order. No deviation therefrom is permitted without agreement in writing by Dorman Long.

PAYMENT: Payment shall be made in accordance with terms set forth in the purchase orderupon receipt by Dorman Long of the conforming goods and services accompanied by invoices rendered in triplicates. Dorman Long shall not be liable for any charges for cartage, boxing, packaging, etc, unless such charges are specifically set forth in the Purchase Order.

TAXES: Prices stated in the Purchase Order include all taxes and duties of any nature whatsoever, including without limitation, any local, state and federal taxes, if any, applicable to this purchase order, the goods or services purchased, of the proceeds paid thereunder, unless otherwise expressly stated herein.

INSPECTION AND TESTING: All inspection and tests shall be made as required by the specification. Dorman Long reserves the right at any time to inspect the materials to be used in the manufacture of the goods and services and/or the finished goods/services to be supplied under this Purchase Order but such inspection shall not relieve the Seller of any obligation under the contract. Failure by Dorman Long to inspect the goods shall not relieve the Seller of any responsibility or liability with respect to such goods and services.

TIME: The time stipulated for delivery of the goods in the purchase Order shall be of the essence of the contract. Delay in the supply of the goods shall entitle the purchaser to apply liquidated damages in the sum of 1.05% of the purchase price for each day of delay subject to a maximum of 10% of the total purchase order price. PROVIDED THAT in the event such delay continues for a period of thirty (30) days, the Purchaser reserves the right to terminate the Purchase Order without prejudice to other legal rights available to the Purchaser.

The payment of liquidated damages shall in no case constitute a waiver, reduction or restriction of DLE's rights, in law or equity, in respect of any other breach by the Seller, nor relieve the Seller of its obligations to diligently perform its obligations under the Purchase Order.

In circumstance where any of the damages outlined herein as being payable by the Seller are successfully challenged (or otherwise deemed in any judicial or arbitral proceedings) as constituting a penalty or otherwise cannot be enforced against the Seller, the parties agree that Seller's liability to Dorman Long will instead be for general damages at law

TITLE AND RISK OF LOSS: Title to the goods shall pass to Dorman Long upon receipt by Dorman Long of the conforming goods or on payment of the invoiced price, whichever is the earlier. In the latter case the storage of such goods shall be at seller's risk. The goods shall remain at the Seller's risk and the risk of loss shall remain the seller's until deliver y is effected as provided in the Purchase Order.

PATENTS, COPYRIGHTS, TRADEMARKS AND TRADE SECRETS: The Seller shall protect, indemnify and hold harmless Dorman Long against any and all liability, loss or expense by reason of any claim, action or litigation in respect of any alleged or actual infringement of any patent, copyright, trademark, foreign or domestic, resulting from the use or resale of the goods the subject matter of the contractor or any part thereof.

LICENSE AND PERMITS: The Seller shall be responsible for ensuring that all statutory licences, consents or permits required for the purpose of performance of the contract have been obtained.

PUBLICITY: Seller shall obtain Dorman Long's permission before disclosing by way of press release or otherwise to any third-party information relating to the transaction herein contained except in so far as is necessary for the information of the Seller's suppliers.

TERMINATION: Dorman Long may at any time give written notice to the Seller to terminate the Purchase Order forthwith and in such event, Dorman Long shall arrange to have paid and the Seller shall accept in settlement of all claims under the contract, such sums as shall reasonably compensate the Seller for all work done and obligations assumed by it in performance of the contract prior to its termination and for all work reasonably done by it in giving effect to such termination . The value of material, payment for which has been arranged by Dorman Long but left in the hands of the Seller, shall be taken into account when calculating such sum.

LIABILITY TO THIRD PARTIES: Each party is fully responsible to third parties for its negligence and strict liability. Except as

provided elsewhere in this Terms and Conditions, nothing in this document or a Purchase Order is intended to impair a party's contribution and indemnity rights under law with respect to third party claims

LIEN: The Seller shall not claim any lien attachment or other similar claims in connection with the materials and shall indemnify Dorman Long against any and all lien attachments to be furnished hereunder.

APPLICABLE LAW: The Purchase Order shall be governed by and construed in accordance the laws of the Federal Republic of Nigeria.

ASSIGNMENT: The Seller shall not assign or sub-contract the Purchase Order or any part thereof or any money becoming due hereunder without the prior written consent of Dorman Long. Any such permitted assignment or sub-contraction shall not relieve the seller of any of his obligations under the Purchase Order.

INSOLVENCY OF THE SELLER: If the Seller shall become bankrupt or insolvent or have a receiving order made against him or compound with his creditors, or being a corporation a petition for the compulsory winding-up thereof is presented or granted or a member voluntary winding-up not being for the purpose of reconstruction or amalgamation thereof commences or on the appointment of a Receiver or a manager of all or of part of its assets, or of an administrative Receiver, or of an administrator, Dorman Long shall be at liberty: (a) To terminate the contract forthwith by notice in writing to the Seller, Receiver, Manager, administrative Receiver, Administrator, or Liquidator or to any person in whom the contract may become a vested or(b) to give such Receiver or Manager or Administrative Receiver, or Liquidator or other person the option of carrying out the contract subject to his providing a guarantee for the due and faithful performance of the contract up to an amount to be agreed..

Delivery: Dorman Long acknowledges that time is of the essence in the performance of all its contracts. In the event delivery of materials, equipment, personnel etc from the Supplier/Company/Client is delayed by reasons not attributable to Do rman Long's negligence, including delays caused by the effects/implications/consequences of COVID-19, Influenza, MRSA or other infectious or communicable disease that qualifies as a Pandemic, time shall not begin to run until those materials, equipment, personnel etc are delivered at/available at the work site.

Force Majeure: Dorman Long shall not be responsible for delays or loss or damage to, or failure to supply materials, equipment, personnel etc on schedule resulting from: Act of God, act of war, act of public enemies, pirates or assailing thieves; embargoes; seizure under legal process, floods; frosts; fogs; fires; epidemics; pandemics, quarantine; intervention of customs or other constituted authorities; blockades; blockages; riots; insurrections; civil commotions; political disturbances; earthquakes; landslips; explosions; collisions; accidents of navigation; accidents at the mine or production facility or to machinery or to loading equipment; accidents at the receivers' works, Port, wharf or facilit y; or any other causes beyond Dorman Long's control; always provided that any such events directly affect the performance of Dorman Long under the contract.

INDEPENDENT CONTRACTOR: In performing Services and other obligations under this Agreement, Seller shall be an independent Contractor and not the agent or employee of Dorman Long. The relationship of employer and employee shall not exist between Dorman Long and Seller or any of Seller's employees, if any. Seller acknowledges and agrees that, with respect to any Services provided under this Agreement, neither Seller nor any of its employees is eligible to participate in and shall not receive any benefits from any employee benefit plan sponsored by Dorman Long and/ or its affiliates. Services shall be performed under the supervision and control of Seller.

Seller shall have no authority to make statements, representations or commitments of any kind or take any other action binding on Dorman Long, except as specifically provided in this Agreement. It is expressly agreed that it is not the purpose or intention of this Agreement or of any Order to create, nor shall the same be construed as creating, any partnership or joint operation between Dorman Long and Seller, Seller's agents, representatives and Sub-Sellers.

For the avoidance of doubt, Seller shall be responsible for all insurance, tax, medical, travel and other associated expenses of its employee's incidental to this Agreement unless otherwise agreed between the Parties in writing.

Entire Agreement: The Terms and Conditions set forth the entire understanding of the parties with respect to the subject matter. All prior and contemporaneous agreements and understandings between the parties whether oral or written, are hereby superseded in their entirety by this Terms and Conditions.

GENERAL: The provision of these General conditions shall apply to the exclusion of all other written terms and conditions of the Seller or Dorman Long, save for those set out in the Purchase Order and nothing said or written in the course of negotiations or otherwise shall have contractual or other legal effect unless it is expressly incorporated in the Purchase Order or any contract that may be signed by the parties.

MODE OF TRANSPORTAND DELIVERY: Seller shall only be allowed to carry out delivery of orders with vehicles that meet Dorman Long's minimum standards. Goods delivered on vehicles which do not meet Dorman Long's minimum standards, nor comply with the load limit would not be unloaded. In default of delivery within the time stipulated in the Purchase Order, Dorman Long shall have the right to charge the seller with any damage, loss or delay arising by reason of seller's default and

without prejudice to the foregoing and any other remedy, by notice in writing to cancel this order and to purchase the goods or services from an alternative source.

EQUIPMENT HIRE: Owing to the prevailing circumstance with COVID-19, equipment rate will only start counting when 'man meets machine' on site. In the event the equipment supplied by the vendor is not fit for purpose or in the event of any fault to the equipment or personnel illness such that service was not achieved, both equipment and personnel shall not be entitled to daily charges. Equipment shall only be charged 100% on the actual days deployed to work. For hired equipment that are to be picked by the Vendor from Dorman Long yard or work site, charges to Dorman Long stops counting upon De-mob notice to the vendor.

Equipment standby rate will not apply during transit period to designated location PROVIDED THAT such delay is not caused by Dorman Long. WARRANTY: Seller warrants to Dorman Long that the Goods and/or work furnished under this Purchase Order, whether manufactured, fabricated, or otherwise produced or provided by Seller or others, will (a) strictly conform to the specifications, drawings, samples, performance criteria, and other descriptions referred to herein or provided by Dorman Long to Seller; (b) be of merchantable quality and fit for the purpose(s) intended; (c) conform with all applicable laws, ordinances, codes and regulations, and (d) be free from defects in materials, performance, operation, and workmanship for a period of one (1) year after being placed in service by Dorman Long or twenty-four (24) months fr om date of Seller's delivery, whichever period expires earlier. All work on the Goods or otherwise in the performance of this Purchase Order shall be done in a skilled manner and shall be of first-class quality and workmanship in every respect. If required by Dorman Long, Seller shall supply satisfactory evidence of the origin, composition, manufacture, kind and quality of the Goods. Seller further warrants that the Goods will be of sufficient size and capacity, and of proper materials, to properly perform the functions specified in this Purchase Order.

WARRANTY REMEDIES: If, within the warranty period specified in above paragraph Dorman Long discovers defects, errors, omissions, operational or performance deficiencies or breach of any warranty as to the Goods, Seller shall promptly repair, reperform, or replace without cost (including removal, reinstallation, access or shipping costs, including labour) to Dorman Long the Goods in question. If Seller fails after reasonable notice to proceed promptly with and complete the repair, reperformance, or replacement of the defective goods, Dorman Long may repair, reperform, or replace the Goods and charge all related costs (including labour and access costs) to Seller without voiding the warranties herein, and without Dorman Long waiving any other rights or remedies it may have under this Purchase Order. Such repair, reperformance, or replacement shall be warranted for a period of twelve (12) months from its acceptance by Dorman Long. If Dorman Long determines, for any reason, that the remedies provided for herein are not adequate or feasible, Dorman Long may elect to have such Goods removed at Seller's expense and any portion of the purchase price paid refunded in full . Any assignee or Client as well as Dorman Long shall have the benefit of the foregoing warranty and warranty remedies under the foregoing paragraphs, and such rights and remedies are in addition to any other rights or remedies provided in law, equity, or under this Purchase Order.

INSURANCE: Supplier agrees to carry out Workers Compensation Insurance as required by applicable law and Employers' liability Insurance with limits not less that the value of this Purchase Order per occurrence with any person entering Dorman Long's property in connection with the performance of this purchase order and Automotive Liability Insurance and Comprehensive General Insurance each with limits not less than the value of this Purchase Order per occurrence for property damage. On Dorman Long's demand, certificates for such insurance must be presented for verification.

INDEMNIFICATION: Seller agrees to release, defend, indemnify and hold harmless Dorman Long and its Client, including their respective affiliates, and any director, officer, employee, contractor, or agent of either, against any costs (including attorney fees and court costs), fines, penalties, damages, and liabilities, arising from, alleged to arise from, or in any way associated with, any defect in the goods furnished hereunder or the negligence or fault of Seller or those for whom it is responsible. Seller shall insure or self-insure its obligations under this Purchase Order.

CLAIMS AND DISPUTE RESOLUTION: Seller shall submit any claims or disputes arising under this Purchase Order to Dorman Long in writing within 90 (ninety) days after final payment is made to Seller, or Seller's discovery of the facts giving rise to the claim or dispute, whichever occurs earlier, and failure to do so shall constitute a waiver by Seller of any legal or equitable rights with respect to the subject matter of the claim or dispute. Seller agrees that any claims and disputes submitted by Seller which cannot be resolved through direct negotiation between Buyer and Seller shall be finally resolved through arbitration in accordance with the Provisions of the Arbitration and Conciliation Act Cap A 18 Laws of the Federation of Nigeria 2004. The Arbitration shall take place in Lagos, Nigeria, and shall be presided over by a single arbitrator mutually appointed by the parties, or failing by the president of the Chartered Institute of Arbitrators, Nigerian branch. The award of the Arbitrator shall be final and binding on the parties and each party shall bear its respective cost of such Arbitration .

Digital PO-Idi Oro Consumables-Viobay

Final Audit Report 2025-07-25

Created:	2025-07-25
By:	Charles Ihuarulam (charlesihuarulam@dormanlongeng.com)
Status:	Signed
Transaction ID:	CBJCHBCAABAATUwpOJAwGyzGtapjPeTQ7Zc_sUxWZDdQ

"Digital PO-Idi Oro Consumables-Viobay" History

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Document e-signed by Chinedu Chinedu (chineduchinedu@dormanlongeng.com)
Signature Date: 2025-07-25 - 1:50:51 PM GMT - Time Source: server

Agreement completed.
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